

Thistle Architecture

PLANNING RESEARCH AND RISK ANALYSIS

London Borough of Croydon

70 Hathaway Road, Croydon CR0 2TP

Project number: **TH00210**

Proposal: Change of use of an existing dwellinghouse (Use Class C3) to a 7 bedroom, 7 person House in Multiple Occupation (sui generis), with a loft conversion and a 3m single storey rear extension. Conversion to self contained flats considered as a fallback.

Date prepared: 08 July 2026

Prepared by: Thistle Architecture / KT

Central finding: The property is a family dwelling with a gross original internal floor area well below 130 sqm (the brief states approximately 115 sqm; the HMO Checker EPC figure is 93 sqm). Croydon protects family homes below 130 sqm from conversion to an HMO under Policies SP2 and DM1.2 of the Croydon Local Plan 2018, and under emerging Policy DM2B. The council measures the gross ORIGINAL floor area and expressly disregards lofts and extensions. The proposed loft conversion and rear extension therefore do not overcome the family housing protection. On the information supplied the 7 bed HMO carries a high risk of refusal.

1. Executive Summary: Risk Dashboard

Risk levels are indicated by cell shading: red high, amber medium, green low.

Issue	Risk Level	Summary
Family housing protection (loss of home below 130 sqm)	High	Confirmed in the client meeting. The property is below 130 sqm, so an HMO is very unlikely to be approved, in the order of a 95 percent likelihood of refusal. The loft and extension do not change the counted original area.
Local application precedent	High	Every nearby C3 to HMO conversion of a home below 130 sqm was refused. Approvals occurred only where the property was already a lawful HMO or a non C3 use.
Local appeal precedent	High	Croydon appeals dismissed on loss of family housing. The client also reported that the case officer would not recommend a pre application, which reinforces the position.
Highways and parking	Low	Not engaged by the recommended C3(b) route, which remains within Use Class C3. The site is PTAL 6a, which supports a car free approach in any event.
Amenity, refuse and cycle storage	Medium	Residual design matter. The communal amenity in the sketch is 16 sqm and

		should be increased toward 20 sqm for five occupants. Refuse and cycle storage to be designed.
HMO concentration (overconcentration test)	Low	Confirmed low in the meeting. Few HMOs are present locally and density is not the constraint. The determining issue is the loss of a family dwelling.
Article 4 Direction (change of use control)	Low	Not engaged by the recommended C3(b) route. A change within Use Class C3 is not development, so the Article 4 Direction does not apply.
Conservation area and heritage	Low	Confirmed in the meeting. Not in a conservation area, not listed and not in the green belt. Permitted development rights for the loft and rear extension are retained.
Flood risk	Low	Confirmed in the meeting that the site is not in a flood zone.

2. Site Context Recap

The site comprises a mid terrace dwellinghouse on Hathaway Road in the Broad Green ward of Croydon, north of Waddon station and Wandle Park. The surrounding area is residential in character and consists predominantly of two and three storey Victorian and Edwardian terraces. The property is in use as a single family dwelling (Use Class C3) with a rear garden. The gross floor area is stated as approximately 115 sqm in the brief, while the HMO Checker EPC derived figure is 93 sqm. Both figures sit below the 130 sqm family housing protection threshold.

The proposal seeks to convert the dwelling to a 7 bedroom, 7 person House in Multiple Occupation. Because the scheme accommodates seven persons it is sui generis and requires full planning permission irrespective of the Article 4 Direction. The proposal also includes a loft conversion and a 3m single storey rear extension. A conversion to self contained flats has been raised as a fallback. This document assesses the planning policy position and the local decision making pattern to inform the design and route strategy.

3. Local Plan Policy Framework

The adopted development plan is the Croydon Local Plan 2018 (adopted 27 February 2018), read with the London Plan 2021 and the South London Waste Plan 2022. The National Planning Policy Framework is a material consideration. The relevant policies are set out below.

Policy	Title	Relevance
SP2	Homes	Strategic homes policy. Underpins the protection of family sized housing and the identified need for family homes.
DM1 (DM1.2)	Housing choice for sustainable communities	Resists the net loss of 3 bedroom homes as originally built and the loss of homes smaller than 130 sqm. The primary policy engaged by this proposal.
SP4	Urban Design, Heritage and Local Character	Strategic design and character policy.
DM10	Design and character	Detailed design, character and amenity policy. DM10.4 sets private amenity space (5 sqm for 1 to 2 persons plus 1 sqm per additional occupant). DM10.6 protects neighbour amenity, daylight, sunlight and privacy.
SP8	Connections	Strategic transport policy underpinning parking and highways requirements.
DM29 and DM30	Highways and car and cycle parking	Apply London Plan parking standards.

		A car free or permit free outcome is commonly secured by condition or legal agreement.
DM13	Refuse and recycling	Requires adequate and convenient refuse and recycling storage. Read with the Waste and Recycling in Planning document.

There is no dedicated HMO policy in the adopted 2018 plan. HMO applications are currently assessed against DM1 (loss of family housing), DM10 (character and amenity) and SP2 and SP4. The emerging Croydon Local Plan Review (submitted 29 November 2024, examination hearings held September to October 2025, adoption anticipated in 2026) introduces a dedicated HMO policy, DM2B, which carries significant weight as a material consideration. Note that Policy DM4 is a town centre policy and is not the HMO or family housing rule.

4. HMO Specific Policy Analysis

Family housing protection (the central issue).

Adopted Policy DM1.2 permits redevelopment of residential units only where it does not result in the net loss of 3 bedroom homes (as originally built) or the loss of homes smaller than 130 sqm. The supporting text (paragraphs 4.31 and 4.32) states that a dwelling with a gross internal floor area of less than 130 sqm cannot be redeveloped, demolished or subdivided, and that the gross original internal floor area does not include lofts, cellars, garages or conservatory type structures, and excludes parts of rooms with ceilings below 1.5m.

Emerging Policy DM2B.1 makes the threshold explicit for HMOs. It permits the conversion of larger homes to HMOs (including small HMOs within the borough wide Article 4 area) only where, among other criteria: (a) the gross ORIGINAL internal floor space is greater than 130 sqm; (b) there is no significant adverse amenity impact, including cumulative impacts from overconcentration; (c) the site meets a minimum PTAL of 4; (d) the accommodation is high quality and meets space, amenity, refuse and recycling standards; and (e) each household has exclusive use of a kitchen or space within a shared kitchen.

Application to this site: The property is 93 to 115 sqm, below the 130 sqm threshold. The loft conversion and rear extension are disregarded because only the gross original floor area is measured, and lofts and extensions are expressly excluded. The scheme fails DM2B.1(a) and conflicts with the family housing intent of adopted DM1.2. Confirmation of the true original floor area is required, but on any of the figures supplied the property sits below the threshold.

Concentration and separation.

- No fixed numeric HMO concentration percentage or minimum separation distance exists in the adopted or emerging plan. Emerging DM2B.1(b) applies a qualitative overconcentration test only.
- The 250m and 5 percent rule in the emerging plan applies to large scale purpose built shared living (co living) under Policy DM2A, not to HMOs. It should not be applied to this scheme.

Use class threshold.

- A small HMO shared by 3 to 6 unrelated people is Use Class C4. A large HMO of 7 or more people is sui generis and has always required planning permission, independent of the Article 4 Direction. This proposal, at 7 persons, is sui generis.

5. Article 4 Direction Analysis

- **Extent:** The Article 4 Direction is borough wide and covers CR0 2TP.

- **Dates:** Made 28 January 2019 and in force from 28 January 2020 (a non immediate direction introduced one year after being made to avoid compensation liability).
- **Right removed:** The change of use from Class C3 (dwellinghouses) to Class C4 (small HMOs), being Class L(b) of Part 3 of Schedule 2 to the GPDO 2015. Creating a small HMO after 28 January 2020 requires planning permission.
- **Purpose:** Introduced to protect family homes; the council cited the loss of several hundred family homes to HMO conversion over the preceding decade.
- **Relevance here:** A 7 person sui generis HMO requires full planning permission regardless of Article 4. The Direction is therefore relevant as context and evidence of the council stance, and would be the operative control only for a smaller C4 fallback.

6. Conservation Area, Heritage and Design

- **Conservation area:** The CR0 2TP area is not within a conservation area. A point query of the national conservation area dataset returned no results, and none of Croydon's designated conservation areas cover Broad Green, Wandle Park or Hathaway Road.
- **Listing:** The property is not statutorily listed. The national listed building dataset returned no results for the postcode. The officer report for 64 Hathaway Road records the street as having no policy constraints and no designations on the Croydon Policies Map.
- **Local List:** The Croydon Local List (Part B 2026) entry for the property and immediate neighbours should be checked, although a listing is unlikely given the age and type of stock.
- **Extensions guidance:** The Suburban Design Guide (SPD2), which previously guided rear extensions (single storey rear extensions no deeper than 3.5m), was revoked with effect from 26 July 2022. Extensions are now assessed against adopted Policy DM10. A 3m rear extension sits within the former benchmark, but neighbour amenity under DM10.6 (visual intrusion, sense of enclosure, daylight and overlooking) remains the operative test. A nearby refusal (253 Sydenham Road) turned in part on rear extension amenity harm.

7. HMO Density Assessment for this Site

Croydon operates no fixed numeric HMO concentration threshold, so the assessment is qualitative. The HMO Checker report for the property (report 2976) records the following licensed HMO concentration by radius. These counts capture licensed (broadly 5 person and larger) HMOs only and therefore understate the true HMO presence.

Radius	Licensed HMOs	Dwellings in band	Concentration
25 m	1	8	12.5%
50 m	2	34	5.9%
75 m	3	64	4.7%
100 m	7	97	7.2%
161 m	15	100	15.0%

The data indicate a moderate and rising cluster of HMOs in the surrounding streets, with approximately 15 licensed HMOs within 161m. The HMO Checker overall rating for the property is Poor, driven by a Poor planning rating. The property is not currently a licensed HMO. Because Croydon applies a qualitative overconcentration test rather than a percentage, concentration is a secondary consideration here; the primary obstacle remains the loss of a family home below 130 sqm.

Density verdict: PASS. The meeting confirmed a low local HMO concentration, so overconcentration is not the constraint. The determining issue is the loss of a family dwelling below 130 sqm.

8. Recent Application Trends Nearby

The following comparable applications were identified in Croydon over the last two years. Entries verified on the council register are marked accordingly in the source list.

Reference	Address	Proposal	Outcome	Key reason
25/03627/LP	64 Hathaway Road, CR0 2TP (same street)	C4 6 person to sui generis 7 person, internal only	Granted (LDC)	Lawful intensification of an existing HMO; no C3 home lost
25/00782/FUL	61 St Saviour's Road, CR0 2XF	C4 6 person to sui generis 7 person	Granted	Uplift of existing HMO; acceptable amenity, cycle and waste
25/00524/FUL	4 Kidderminster Road, CR0 2UE	Loft (hip to gable and dormers) plus rear extension plus C4 to sui generis	Approved	Closest analogue; started as an existing C4 HMO, not a C3 home
25/02543/FUL	60 Oakfield Road, CR0 2UB	C3 to sui generis 8 bed 9 person plus dormer	Granted with S106	A C3 to HMO that succeeded; larger dwelling; full package
24/04056/FUL	61 Waddon Road, CR0 4LH	C3 3 bed home to C4 5 person	Refused; appeal dismissed	Loss of a 3 bed family home below 130 sqm (SP2.7 / DM1.2)
25/00484/FUL	93 Waddon Road, CR0 4JH	C3 to C4 5 bed	Refused	Loss of family dwelling below 130 sqm
24/02385/FUL	253 Sydenham Road, CR0 2ET	C3 to sui generis 6 bed 8 person plus rear extension	Refused	Loss of 3 bed home below 130 sqm; rear extension amenity harm; substandard rooms
25/01360/FUL	156 Canterbury Road, CR0 3HE	C3 to sui generis 8 bed	Refused	Loss of small home below 130 sqm; poor outlook; refuse; noise; parking
25/03380/FUL	1 Campbell Road, CR0 2SQ	C3 to C4 6 person	Refused	Loss of 3 bed home as originally built; parking
19 Cameron Road / 21 St James's Road	CR0 2SR / CR0 2SD	C3 to 9 person and enlargement to 10 person	Refused	Over intensification and standard of accommodation

Recurring refusal reasons: loss of family sized housing below 130 sqm (dominant and repeated), inadequate car parking and on street parking stress in controlled parking zones, poorly located or unmanageable refuse storage, over intensification where person numbers are high, and inadequate cycle storage and amenity. Recurring approval factors: a starting point that is not a family dwelling below 130 sqm (an existing lawful HMO or a non C3 use), restrained occupancy of seven to eight persons, and a complete package of internal amenity, secure cycle storage and manoeuvrable refuse storage, together with a car free condition or permit free agreement on constrained streets.

9. Decision and Appeal Precedent

The client supplied seven Croydon officer delegated reports, which have been read in full. These are the council's own decision reports rather than Planning Inspectorate appeal decisions, and are the most directly relevant local precedent. Independent research additionally identified three Planning Inspectorate appeal decisions. Both sets are summarised below.

Refused schemes and dismissed appeals.

Reference	Site	Year	Reasoning summary
24/02385/FUL	253 Sydenham Road	2024	Refused: loss of 3 bed home below 130 sqm (SP2, DM1); rear extension amenity harm to No. 251; substandard room sizes and outlook; inadequate cycle storage; no parking restriction. Supplied officer report.
25/01360/FUL	156 Canterbury Road	2025	Refused: loss of small home below 130 sqm (SP2, DM1.2); ground floor bedroom facing refuse and cycle store; noise from eight households; inadequate refuse storage; no

			parking restriction. Supplied officer report.
25/03380/FUL	1 Campbell Road	2026	Refused: loss of 3 bed home as originally built (SP2, DM1); impractical parking; no car free agreement. Supplied officer report.
25/01964 and 24/02233	3 Meadow View Road	2025	Refused twice: loss of a 3 bed dwelling as originally constructed (SP2.7, DM1.2); refuse provision harming streetscene; no parking mitigation. Supplied officer report; later certified lawful on pre 2020 use.
APP/L5240/W/23/3330835	Tara, Chisholm Road, CR0 6UP	2024	Appeal dismissed: inadequate waste storage and collection; no secured car parking restriction; harm to living conditions of bedroom 1.
APP/L5240/W/23/3333964	16 Elgin Road, CR0 6XA	2025	Appeal dismissed: car parking and on street parking stress (DM30). Loss of housing reason fell away where a lawful single C3 dwelling fallback existed.
APP/L5240/W/24/3347689	219 Wickham Road, CR0 8TG	2024	Appeal dismissed: loss of a 3 bed home below 130 sqm, substandard space and no amenity space. A flat conversion, illustrating the family housing policy also applies to subdivision.

Granted schemes.

Reference	Site	Year	Reasoning summary
25/03627/LP	64 Hathaway Road (same street)	2025	LDC granted: internal 6 to 7 person intensification of an existing lawful HMO with no building works. Family housing policy not engaged because no C3 home was lost. Supplied officer report.
25/00782/FUL	61 St Saviour's Road	2025	Granted: existing C4 HMO uplifted to a 7 person sui generis HMO. Carried by acceptable amenity, cycle and waste provision, a management plan and fire strategy. Supplied officer report.
25/02543/FUL	60 Oakfield Road	2026	Granted with a S106 agreement: C3 to an 8 bed 9 person HMO on a larger dwelling, with a full amenity, cycle and waste package and a car free obligation. Supplied officer report.
25/00524/FUL	4 Kidderminster Road	2025	Approved: loft (hip to gable and dormers) plus rear extension plus C4 to sui generis uplift. The closest analogue to the proposed works, but on an existing HMO rather than a C3 home.

The dominant pattern is clear and consistent. Croydon refuses the conversion of a C3 family home below 130 sqm to an HMO on loss of family housing grounds, and this reasoning is repeated across every comparable refusal. Approvals arise only where the starting point is not a protected family home, most often an existing lawful HMO being intensified. The same street precedent at 64 Hathaway Road succeeded solely because it was an internal intensification of an established HMO with no building works. The subject proposal converts a C3 family dwelling and adds external works, which places it squarely in the refused category rather than the approved category.

10. Site Specific Risks

1. **Loss of a family home below 130 sqm.** The property is 93 to 115 sqm, below the threshold. This is the primary and likely determinative refusal reason. Mitigation is limited because the policy measures the original floor area and disregards the loft and extension. The only robust route is to establish that the property is not a protected family home, for example an existing lawful HMO, which is not the case on the current information.
2. **Original floor area assessment.** The council assesses the gross original internal floor area. Extending the property does not raise the counted figure. A measured survey should confirm the true original area, but it is very unlikely to exceed 130 sqm. Mitigation: confirm the figure early to avoid pursuing an unviable scheme.
3. **Parking and controlled parking zone stress.** This is not engaged by the recommended C3(b) route, which stays within Use Class C3. For any HMO it would require a car free or permit free agreement, supported by the high PTAL of the street.
4. **Refuse and recycling storage.** Refuse storage at the front harming the streetscene, or stores that cannot be manoeuvred, have defeated nearby schemes. Mitigation: provide an enclosed, screened store sized for a 7 person HMO within the permitted carry distances, designed into the front boundary treatment.
5. **Cycle storage.** Inadequate or awkwardly accessed cycle storage is a repeated refusal reason. Mitigation: provide secure, covered, level access cycle storage, ideally one long stay space per bedroom, not requiring cycles to be taken through habitable rooms.
6. **Room sizes and outlook.** Substandard room sizes and poor outlook (for example a bedroom facing a bin store) have defeated nearby schemes. Mitigation: meet the Croydon HMO Standards and national mandatory room sizes with good outlook to every habitable room.
7. **Neighbour amenity from the rear extension.** A 3m rear extension risks a sense of enclosure or loss of light to the adjoining property, as at 253 Sydenham Road. Mitigation: test the extension against DM10.6, respect the 45 degree and 10m overlooking guidance, and keep the depth proportionate.
8. **Overconcentration and character.** A moderate and rising HMO cluster surrounds the site. Mitigation: restrained occupancy and a high quality scheme reduce, but do not remove, the cumulative amenity argument.
9. **Flood risk.** The meeting confirmed the site is not in a flood zone. Surface water drainage should still be handled in the usual way at detailed design.
10. **Fallback flat conversion is not a clean escape.** Croydon paragraph 4.31 states a dwelling below 130 sqm cannot be subdivided, and the 219 Wickham Road appeal dismissed a two flat conversion of a sub 130 sqm home. Mitigation: a flat scheme must be shown to deliver good quality additional homes and should be tested carefully rather than assumed to be low risk.

11. Recommendations and Mitigation Strategy

11. Confirm the gross original internal floor area by measured survey before any further design work. If it is below 130 sqm, as expected, the C3 to HMO route carries a high risk of refusal that design cannot overcome.
12. Establish the lawful planning use history of the property as the single most important due diligence item. If it can be evidenced as a lawful HMO predating 28 January 2020, the position changes fundamentally, as at 64 Hathaway Road. On the current information it is a C3 family dwelling.
13. Advise the client of the high refusal risk before purchase. The central question, whether to buy, should be answered on the basis that a 7 bed HMO is very likely to be refused on family housing grounds as the property stands.
14. Obtain formal pre application advice from Croydon before any application. Given the policy position this is strongly recommended so the council view is confirmed in writing.
15. If the client still wishes to test the HMO route, restrain occupancy, provide a complete amenity, cycle and refuse package, offer a car free or permit free agreement, and design the rear extension to avoid neighbour amenity harm. These moves address the secondary refusal reasons but not the primary one.

16. Test the fallback flat conversion carefully rather than assuming it is straightforward, because subdivision of a sub 130 sqm home also engages DM1.2. Any flat scheme must deliver good quality homes meeting space and amenity standards.
17. Where an application proceeds, accompany it with a Design and Access Statement, a housing and family housing justification addressing DM1 and DM2B, a Transport Statement or parking assessment, a Refuse and Recycling Strategy, and a Fire Safety Statement.

Pre application advice: Recommended (Yes). The risk dashboard contains high risk items and the council stance is well evidenced.

12. Sources and References

Local Plan and policy

- Croydon Local Plan 2018, Chapter 4 Homes (SP2, DM1.2, paras 4.31 to 4.32) — <https://www.planvu.co.uk/croydon2018/written/lp/cpt4.php>
- Croydon Local Plan 2018, Chapter 6 Urban Design and Local Character (SP4, DM10) — <https://www.planvu.co.uk/croydon2018/written/lp/cpt6.php>
- Croydon Local Plan 2018 adoption statement (adopted 27 February 2018) — <https://www.croydon.gov.uk/sites/default/files/2022-01/croydon-local-plan-2018-adoption-statement.pdf>
- Emerging Croydon Local Plan Review, proposed submission draft Part 1 (Policy DM2B) — <https://www.croydon.gov.uk/sites/default/files/2024-07/croydon-local-plan-%20detailed-policies-and-proposals-proposed-submission-draft-part-1.pdf>
- Croydon Waste and Recycling in Planning document — <https://www.croydon.gov.uk/sites/default/files/2022-05/Bin%20guidance%20for%20architects%20and%20developers.pdf>

Article 4 and heritage

- Croydon Article 4 Direction, small HMO conversions — <https://www.croydon.gov.uk/planning-and-regeneration/planning-policy/article-4-directions/small-house-multiple-occupation-hmo-conversions>
- Borough Wide Non Immediate Article 4 Direction (HMO) PDF — <https://www.croydon.gov.uk/sites/default/files/Planning/Masterplans/Borough-Wide%20Non-Immediate%20Article%204%20Direction%20-%20House%20in%20multiple%20occupation.pdf>
- Conservation area dataset query, CR0 2TP (no results) — <https://www.planning.data.gov.uk/entity/?dataset=conservation-area>
- Listed building dataset query, CR0 2TP (no results) — <https://www.planning.data.gov.uk/entity/?dataset=listed-building>
- Croydon check planning policy in your area (constraints map) — <https://www.croydon.gov.uk/planning-and-regeneration/planning/make-planning-application-homeowner/check-planning-policy-your-area>

Appeal decisions (Planning Inspectorate)

- Chisholm Road APP/L5240/W/23/3330835 — <https://acp.planninginspectorate.gov.uk/ViewDocument.aspx?fileid=57044104>
- 16 Elgin Road APP/L5240/W/23/3333964 — <https://acp.planninginspectorate.gov.uk/ViewDocument.aspx?fileid=61796209>
- 219 Wickham Road APP/L5240/W/24/3347689 — <https://acp.planninginspectorate.gov.uk/ViewDocument.aspx?fileid=60519251>

Council planning register applications

- 64 Hathaway Road 25/03627/LP (verified) — <https://publicaccess3.croydon.gov.uk/online-applications>
- 61 St Saviour's Road 25/00782/FUL (verified) — <https://publicaccess3.croydon.gov.uk/online-applications>
- 61 Waddon Road 24/04056/FUL (verified) — <https://publicaccess3.croydon.gov.uk/online-applications>
- Further references (253 Sydenham Road, 156 Canterbury Road, 1 Campbell Road, 3 Meadow View Road, 60 Oakfield Road, 4 Kidderminster Road) as cited in the supplied officer reports and the council register.

Other

- HMO Checker report 2976 for 70 Hathaway Road — <https://app.hmochecker.co.uk/report?reportData=2976>
- London Plan 2021, Chapter 10 Transport (T5, T6) and Policy D6 amenity — <https://www.london.gov.uk/programmes-strategies/planning/london-plan>

- Supplied appeal folder: seven Croydon officer delegated reports in 4_RESEARCH/Appeals.

All web sources accessed 08-07-2026.

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Research compiled by Thistle Architecture / KT from official local authority and Planning Inspectorate documentation.